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**NEXT DOOR ESCROW, INC. IS LICENSED BY THE CALIFORNIA DEPARTMENT OF FINANCIAL PROTECTION
AND INNOVATION, LICENSE NUMBER 96DBO-185113**

**ESCROW HOLDER'S SUPPLEMENT TO CALIFORNIA PURCHASE CONTRACT AND JOINT ESCROW
INSTRUCTIONS DATED February 1, 2026**

Alicia Smith
Escrow Officer/Manager

Escrow No.: 2064-AS
Date: 02/09/2026

We, the undersigned, hand you a copy of the California Residential Purchase Agreement and Joint Escrow Instructions dated February 1, 2026 including Counter Offers and Addendums (original(s) of which has/have been executed by all parties and retained by broker). Your duties and responsibilities are limited to those paragraphs specified in paragraph 19, of the original deposit receipt.

Buyer has handed NEXT DOOR ESCROW, INC.

Initial deposit in the amount of	\$110,850.00
Prior to close of escrow, buyer will deposit an additional amount of	\$628,150.00
Buyer herein to obtain a new first trust deed loan in the amount of	\$2,956,000.00
Total Consideration	3,695,000.00

I/We will deliver to you any instruments which this escrow requires, fully executed, all of which you are instructed to use provided that on or before March 4, 2026 you hold a policy of title insurance issued by Chicago Title with a liability of covering property:

LEGAL DESCRIPTION ATTACHED HERETO AS EXHIBIT "A" AND MADE A PART HEREOF

SELLER STATES THAT THE PROPERTY ADDRESS IS: 1634 Benedict Canyon Drive, Los Angeles, CA 90210

TITLE POLICY TO SHOW TITLE VESTED IN: Nilanthi Melony Mahaarachchi, and Senaka Mahaarachchi (vesting to be determined prior to the close of escrow) Escrow holder is instructed to insert Buyer's vesting and/or name variation in the grant deed, above the seller's signature, as per buyer's written unilateral instructions.

FREE FROM ENCUMBRANCES EXCEPT:

- (1) General and special Taxes for the fiscal year , including bonds, special assessments, assessed against former owner, and/or supplemental taxes assessed pursuant to the provisions of Chapter 498, Statutes of the State of California. (Change of Ownership will affect the taxes to be paid. A Supplemental Tax Bill will be issued and BUYER accepts all responsibility for all additional taxes due because of said reassessment. TAX BILLS ISSUED

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Seller's Initials: _____ Buyer's Initials: _____ / _____

AFTER THE CLOSE OF ESCROW SHALL BE HANDLED DIRECTLY BETWEEN BUYERS AND SELLERS.)

- (2) Covenants, conditions, restrictions, reservations, rights, rights of way, and easements, and any oil, gas, or mineral reservations now of record, if any.
- (3) New Deed of Trust to record securing a note in the amount of \$2,956,000.00

INSTRUCTIONS:

PURCHASE AGREEMENT: The Purchase Agreement dated February 1, 2026 and all Addendums thereafter are hereby acknowledged to be made a part of this agreement and the Buyer and Seller agree to be bound by the terms and conditions contained thereon.

FUNDING THE NEW LOAN: If lender issues loan funds other than by wire transfer, they may not be immediately available for distribution. This may result in a delay in the close of escrow unless all parties hereto sign a written authorization for the title company instructing that this escrow be closed and disbursement of funds withheld until they become available. All parties herein release and hold harmless Escrow Holder and Title Company from any and all liability and/or responsibility as it relates to any additional interest, costs and/or penalties which may be incurred as a result of same.

FIRE INSURANCE: Buyer will provide new hazard insurance, as required by Buyer's new lender. From the buyer's funds, at close of escrow, Escrow Holder is instructed to pay for said policy from the billing submitted to Escrow Holder by the insurance agent or insurance company.

NATURAL HAZARD DISCLOSURE: Buyer and Seller acknowledge the requirement by the State of California of the Natural Hazard Disclosure Report (hereinafter "NHD") and that Escrow Holder is not the responsible party for obtainment of the NHD or delivery of same. Charge Seller's account at close of escrow for the NHD pursuant to invoice(s) presented to Escrow Holder. In the event no billing is presented prior to the close of escrow, Escrow Holder shall not be further concerned with same. In the event the NHD is deposited with Escrow Holder for signatures, the same will be forwarded to Buyer in care of Buyer's Agent and to Seller in care of Seller's Agent, or directly to Buyer and Seller in the event no Agent or Broker is involved.

1099 FORM: If required by law, the seller shall hand to Escrow Holder an IRS 1099 gross proceeds report, which you are to forward to the IRS in accordance with the law, and a copy thereof is to be delivered to the seller at the close of escrow. This is NOT in lieu of any tax withholding which may become applicable under FIRPTA. ESCROW HOLDER IS AUTHORIZED AND INSTRUCTED TO INSERT BUYER'S PART OF REAL ESTATE TAX PAID, OVER THE SIGNATURE OF THE SELLER, ON SAID 1099, AT THE CLOSE OF ESCROW WITHOUT ANY LIABILITY ON THE PART OF ESCROW HOLDER FOR SO DOING.

"AS-IS" CONDITION: The undersigned buyer has inspected the subject property and is purchasing the same based upon that inspection and is not in reliance on any representation, implied or stated, of the seller or any selling agent for broker. Buyer understands that this sale is made without representation, warranty or covenant of any kind, expressed or implied, and that buyer is purchasing the subject property in its "AS IS" condition with the exception of the termite report as set forth herein.

DEPOSIT OF CLOSING FUNDS: Pursuant to Federal Regulations and the California Insurance Code, all funds deposited for close of escrow by parties hereto MUST be in one of the following forms: 1) Cashier's Check, Teller Check or Certified Check for amounts under \$100,000.00 (FUNDS MUST BE DEPOSITED TWO (2) BUSINESS DAYS PRIOR TO CLOSE OF ESCROW); OR 2) Direct electronic "wire" transfers into escrow trust account for amounts of \$100,000.00 or more (please contact Escrow Holder for wiring instructions). Bank charges for wire transfers shall be paid by the party for whose benefit the wire transfer is made.

CLOSING COSTS: Seller and Buyer herein, agree to each pay their own normal and customary closing costs. Seller herein agrees to pay all Seller's usual costs and charges in this transaction which may include, but not limited to the Owner's Policy of Title Insurance, notary fee, reconveyance fee, if any, recording fees, Seller's escrow fee and documentary transfer tax. Buyer agrees to pay all Buyer's usual costs and charges in this transaction which may include, but not limited to Buyers loan fees and costs, if any, ALTA Policy of Title Insurance, if any, Buyer's escrow fee, notary fee and recording fees.

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Seller's Initials: _____ Buyer's Initials: _____ / _____

AUTHORIZATION TO ACCEPT ELECTRONIC SIGNATURES AND DOCUMENTS: In accordance with California's Uniform Electronic Transactions Act (the "Act"), the Parties hereby authorize Escrow Holder to accept electronic and/or digital signatures and records, transmitted via facsimile or other electronic means (collectively "electronic signatures") into this escrow as originals. The Parties expressly agree that this transaction can be conducted electronically, at the option of the Parties, to the fullest extent possible under the Act and recording laws. The Parties agree to transmit original, wet signatures on all documents to be recorded and on all documents excluded from being enforceable under the Act. The Parties agree to verify any and all electronic signatures upon request of Escrow Holder.

PRELIMINARY CHANGE OF OWNERSHIP REPORT: Prior to the close of escrow, Grantee shall cause to be handed to Escrow Holder a fully completed and executed "Preliminary Change of Ownership Report" pursuant to the requirements and in accordance with Section 480.3 of the Revenue and Taxation Code, State of California. If Grantee so chooses, Grantee may elect not to complete and execute said form prior to the close of escrow. In such an event, Grantee is aware that a \$20.00 charge will be assessed by the County Recorder's Office and Escrow Holder will charge the account of the Grantee accordingly. Escrow Holder's sole duty shall be the delivery of said form to the County Recorder at the time of recordation of transfer documents.

INSTRUCTIONS NOT TO SUPERSEDE: These escrow instructions are executed for the sole purpose of enabling the Escrow Holder to complete this transaction, and are not intended to amend, modify, supersede or in any way change that certain agreement entered into by the parties hereto and dated prior to these instructions. Next Door Escrow Inc., its officers and/or employees shall not be concerned with said agreement or any matter as contained therein and is responsible only for such matters as are specifically set out above in the instructions.

Escrow Holder Relationship:

All parties are aware that one of the principals of Next Door Escrow Inc. is affiliated with the following entity: 1Vision Real Estate. All parties understand and agree to this relationship.

PRORATIONS: Prorate as of Close of Escrow

·Real Property taxes based on latest tax bill or on amount furnished by title company.

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Seller's Initials: _____ Buyer's Initials: _____ / _____

GENERAL PROVISIONS

1. **Terms and Subject Headings:** In these additional escrow instructions, the terms “you”, “your” and “Escrow Holder” shall mean NEXT DOOR ESCROW, INC., wherever the context requires, the masculine gender includes the feminine and/or neuter and the singular number includes the plural.

2. **Opening of Escrow:**

- A. Except as limited by the terms of the Purchase Agreement, Offer to Purchase, Deposit Receipt, C.A.R. Form RPA, AIR Form, or any other written purchase agreement between the parties received by Escrow Holder; your duty to act as escrow holder shall not commence until these instructions, signed by all parties, are received by Escrow Holder. Until such time either party may unilaterally cancel the proposed escrow by written request delivered to Escrow Holder, whereby a party may withdraw funds or documents deposited with Escrow Holder by that party.
- B. These Supplemental Escrow Instructions and General Provisions may be executed in counterparts, each of which shall be deemed an original regardless of when executed and delivered. All such counterparts together shall constitute one and same document. Any and all further escrow instructions, amendments or supplements to Escrow Holder shall also be governed by the terms and conditions of these Supplemental Escrow Instructions and General Provisions, except as amended or modified by the mutual agreement of the parties and Escrow Holder.

3. **Responsibility of Escrow Holder:**

- A. All parties agree your rights and liability in this transaction is as an escrow holder, and no other legal relationship is created. You are an escrow holder only on the express terms of these instructions. You have no duty or responsibility to notifying me or any other party related to this escrow of any sale, resale, loan, exchange or other transaction involving any property described or of any profit realized by any person, firm, corporation or parties (broker, agent) to this or any other escrow, regardless that such transaction(s) may be handled by you in this escrow or in another escrow. You shall not be required to take any action for the collection, maturity or apparent outlaw of any obligations deposited in this escrow, unless otherwise instructed.
- B. Escrow Holder's duties are limited to the safekeeping of such money and documents received by it as escrow holder and for the disposition of same under the written instructions accepted by Escrow Holder in this escrow. Escrow Holder shall not be liable for any damages, losses, costs or expenses incurred by any party in the handling and processing of escrow because of any act or failure to act made or omitted in good faith or for any action taken that Escrow Holder shall in good faith believe to be genuine.
- C. NOTWITHSTANDING ANY PROVISIONS TO THE CONTRARY IN THE PURCHASE AGREEMENT, ESCROW INSTRUCTIONS, AMENDMENTS, OR LENDER INSTRUCTIONS; ESCROW HOLDER DOES NOT VERIFY SIGNATURES OR INVESTIGATE WHETHER THERE IS FALSE IMPERSONATION, FORGERY, OR FRAUD ON DOCUMENTS TRANSMITTED OR DEPOSITED INTO THIS ESCROW BY THE PARTIES OR THEIR AGENTS.
- D. ESCROW HOLDER IS NOT LIABLE OR RESPONSIBLE IN ANY MANNER FOR THE SUFFICIENCY OR CORRECTNESS AS TO FORM, CONTENT, MANNER OF EXECUTION, OR VALIDITY OF ANY DOCUMENTS; OR AS TO THE IDENTITY, AUTHORITY, CAPACITY OR RIGHTS OF ANY PERSON EXECUTING THE SAME THAT ARE DEPOSITED INTO ESCROW. ESCROW HOLDER IS NOT LIABLE OR RESPONSIBLE FOR ANY LOSS THAT MAY OCCUR BY REASON OF FORGERIES, CYBER-CRIME, FRAUD OR FALSE REPRESENTATIONS MADE BY OR INVOLVING THIRD PARTIES, A PRINCIPAL'S AGENTS, OR THE PARTY TO THIS ESCROW.
- E. Escrow Holder is authorized and directed to deposit any and all funds received in this escrow in an “Escrow Trust Account” with City National Bank, located in Los Angeles, California in the name of Escrow Holder with other escrow funds pending completing this escrow. EACH PARTY UNDERSTANDS THAT THE ESCROW TRUST ACCOUNT IS NON-INTEREST BEARING. NO FINANCIAL OR OTHER BENEFITS WILL BE EARNED BY OR PROVIDED TO ANY OF THE PARTIES WITH RESPECT TO SUCH FUNDS. NOTWITHSTANDING, ESCROW HOLDER AND ANY AFFILIATES MAY RECEIVE DIRECT OR INDIRECT FINANCIAL AND OTHER BENEFITS FROM THE DEPOSITORY WITH RESPECT TO SUCH FUNDS. THESE BENEFITS SHALL BE TREATED AS ADDITIONAL COMPENSATION TO ESCROW HOLDER FOR ITS SERVICES IN THIS TRANSACTION.
- F. All parties depositing funds with this escrow are notified that the funds so deposited are insured only to the limits provided by the Federal Deposit Insurance Corporation. If you have questions about FDIC deposit insurance, contact your financial or legal advisors or go to <https://www.fdic.gov/deposit/index.html>.

4. **Responsibility of Title Company/ Sub-Escrow Holder:** If it is necessary, proper, or convenient to consummate this escrow, Escrow Holder is directed to transfer or cause to be transferred any funds or documents from Parties or others regarding this Escrow to a Sub-escrow holder, including, but not limited to, any bank, trust company, Title Company, or

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Seller's Initials: _____ Buyer's Initials: _____ / _____

licensed escrow holder. Any such deposit shall be deemed a deposit under the meaning of these escrow instructions. The Parties and Lender are aware the Title Company utilized for obtaining a Title Insurance Policy will also be utilized in this transaction as a Sub-Escrow Holder. As Sub-Escrow Holder, the Title Company shall receive loan funds for use in accordance with the lender's instructions and is charged with the exclusive duty of paying any taxes, beneficiary or payoff demands; and too obtain a full or partial reconveyance of any liens or encumbrances paid to place the title of the property in the manner provided for in any lender instructions or escrow instructions. The Parties, Lender, and Title Company acknowledge and accept that the sole and exclusive remedy for any injury or damages arising out of the Title Company's performance as a Sub-Escrow Holder shall lie only against the Title Company and not the Escrow Holder.

5. Title Insurance:

A. Escrow Holder is instructed to open a title order with a Title Company to obtain its commitment to issue a policy of title insurance on the property in the condition identified in the escrow instructions by the parties. The Parties are responsible for ordering all endorsements desired from Title Company. Escrow Holder is not required to submit any preliminary title report issued or documents described in any preliminary title report in this escrow to any party or broker unless directed to do so in written instructions. Escrow Holder may, however, do so without incurring liability to any party for such submission. Escrow Holder may submit such preliminary title report to any proposed lender, and may deliver assurances of title, commitments for insurance policies to hold or for senior encumbrances or order, or if there are no encumbrances, then to Buyer(s) or his order. The Buyer(s), Seller(s) and Lender(s) understand that any preliminary title report obtained in this transaction is subject to the limitations of California Insurance Code §12340.11; and Escrow Holder makes no assurances, warranties, or representations as to the current or future condition of title to the property or priority of a lien at any time.

B. The parties authorize the recordation of any instrument delivered through this escrow if necessary or proper to issue the required policy of title insurance or to close this escrow. Funds, instructions, or instruments received in this escrow may be delivered to, or deposited with any title insurance company or title company to comply with the terms and conditions of this escrow. Title Company fees and recording fees shall be charged to the account of the benefited party.

C. Buyer and Seller authorize and instruct Escrow Holder to utilize the legal description deposited into escrow or provided by the Title Insurance Company in this transaction to prepare any deed or other documentation necessary to close this transaction. Escrow Holder has no duty to investigate and does not warrant the accuracy of said legal description and is released of any and all liability, responsibility, and is held harmless in connection thereto.

D. Title Policy: The Buyer and any Lender obtaining any Title Policy understand the original Title Policy is issued after the close of escrow and hereby instruct the Title Company to forward the original Title Policy issued directly to the Buyer or Lender, as appropriate, to their respective address designated during the escrow transaction.

6. Time Is of The Essence in These Instructions: If the date by which a Buyer's or Seller's performance is due is other than Escrow Holder's regular business day, such performance shall be due on the next succeeding business day. If the conditions of this escrow have not been complied with at the expiration of the time provided for, or any extension, Escrow Holder is instructed to complete the same at the earliest possible date, unless a party makes written demand upon you for cancellation and the return of the money and/or instruments deposited. If written demand to cancel is received, Escrow Holder in its sole discretion may stop and withhold all further proceedings in this escrow, without liability for interest on funds held or for damages, until the demand is withdrawn by the party, or by further mutual instructions or order in form satisfactory to Escrow Holder.

7. Prorating Authorization: Escrow Holder will make all prorations and adjustments on the basis of a thirty (30) day month, unless otherwise instructed in writing. The "Close of Escrow" for prorations and adjustments in this escrow means the date documents are recorded, unless otherwise specified in writing.

8. Property Tax Proration: Escrow Holder will prorate real property taxes based upon tax figures provided by the Title Company in this transaction, without liability to Escrow Holder as to their correctness. Buyer knows that the property will be reassessed upon change of ownership. The County Tax Assessor may issue supplemental tax bills for more than the amount used for prorating purposes, or if there has been an overpayment, the overpayment amount may not be refunded, but may instead be held for a subsequent credit against the payment of future taxes on the property. Buyer and Seller agree that any overpayment or underpayment of taxes shall be adjusted by and between the Buyer and Seller outside of escrow. TAX BILLS ISSUED AFTER CLOSE OF ESCROW SHALL BE HANDLED BETWEEN BUYER AND SELLER OUTSIDE OF ESCROW. Escrow Holder is released from responsibility or liability of any kind arising out of any such overpayment, underpayment or reassessment of taxes, which shall survive the close of escrow.

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Seller's Initials: _____ Buyer's Initials: _____ / _____

9. **Preliminary Change of Ownership Report:** Section 480.3 of the Revenue and Taxation Code requires that an original "Preliminary Change of Ownership Report" be completed and certified by Buyer, and filed concurrently with the Deed or other documents that reflect a change of ownership in real property. The Buyer agrees to complete and sign said report and deliver same to Escrow Holder for filing. Escrow Holder shall forward same to the Title Company for submission to the Recorder's Office at the Close of Escrow. In the event Escrow holder is not in receipt of the original Preliminary Change of Ownership Report, Escrow holder may proceed with the close of escrow. Buyer understands and acknowledges that the County Recorder's Office will charge an additional non-refundable fee of Twenty Dollars (\$20.00) should the fully completed/certified report not accompany the conveyance document or be rejected. Besides this fee, there may be additional expenses incurred by Buyer outside of escrow or after the Close of Escrow due to Buyer's failure to file a completed/certified report. Buyer authorizes Escrow Holder to debit the Buyer's account for said Twenty Dollars (\$20.00) at the Close of Escrow if the Change of Ownership Statement is not deposited with Escrow Holder. Buyer is responsible for completing and returning any Change of Ownership Report required by the Office of the County Assessor after the Close of Escrow and is exclusively responsible for any penalty or reassessment tax imposed by the Office of the County Assessor for Buyer's failure to return a Change of Ownership Report to the Office of the County Assessor.

10. **Foreign Investment in Real Property Tax Act – FIRPTA -- Withholding:** The sale of a U.S. real property interest by a foreign person is subject to the Foreign Investment in Real Property Tax Act of 1980 (FIRPTA) as amended by the Protecting American from Tax Hike Act of 2015 for income tax withholding. Persons purchasing U.S. real property interests from foreign persons must withhold 15% of the amount of the gross sales price from seller's proceeds unless an exemption applies. One such exemption applies to transactions where the transferee acquires the real property as a principal residence and the purchase price is \$1,000,000 or less. If a transaction qualifies for this exemption, the withholding rate remains at the existing 10%. A Buyer and Seller must consult with their independent tax or legal professional and may not rely upon Escrow Holder. Buyer shall remain the withholding holder notwithstanding any act by the Escrow Holder. The Buyer must find out if the Seller is a foreign person. If Seller is a foreign person and Buyer fails to withhold, the Buyer may be held liable for the tax.

Seller and Buyer agree to execute and deliver to Escrow Holder any instrument, affidavit and statement or to perform any act reasonably necessary to carry out FIRPTA and regulations promulgated thereunder. Seller certifies under penalty of perjury, that the information on said form is true, correct and complete. Buyer and Seller agree to hold Escrow Holder harmless and indemnify Escrow Holder regarding compliance with this instruction.

11. **California Tax Withholding:** Notification to Buyer and Seller Regarding Tax Withholding Requirements On The Sale Of Real Property (CAL-FIRPTA): Certain Sellers may be exempt from withholding. Each Party must seek independent tax advice from a professional or contact the FRANCHISE TAX BOARD, WITHHOLD AT SOURCE UNIT, P.O. BOX 651, SACRAMENTO, CA 95812-0651, Phone: (916) 845-4900 or Toll Free at (888) 792-4900. In accordance with Section 18662 of the Revenue and Taxation Code, a buyer may be required to withhold an amount equal to 3 1/3% (.0333) of the sale price, or an alternative withholding calculation amount certified by the seller in the case of a disposition of California real property interest by either:

A seller who is an individual, trust, or estate, or when the disbursement instructions authorize the proceeds to be sent to a financial intermediary of the sellers.

A corporate or partnership seller that has no permanent place of business in California immediately after the transfer of title to the California property.

The buyer may become subject to penalty for failure to withhold. The penalty is an amount equal to the greater of 10 % of the amount required to be withheld or five hundred dollars (\$500). However, notwithstanding any other provision included in the California statutes referenced above, no buyer will be required to withhold any amount or be subject to penalty for failure to withhold if: (1) The sale price of the California real property conveyed does not exceed one hundred thousand dollars (\$100,000); (2) The seller executes a written certificate under the penalty of perjury certifying that the seller is a corporation or a partnership with a permanent place of business in California. (3) The seller, who is an individual, trust, estate, partnership, or a corporation without a permanent place of business in California, executes a written certificate under the penalty of perjury of any of the following:

The California real property being conveyed is the seller's or decedent's principal residence (within the meaning of Section 121 of the Internal Revenue code (IRC)).

The last use of the property being conveyed was by the transferor as the transferor's principal residence (within the meaning of IRC Section 121).

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Seller's Initials: _____ Buyer's Initials: _____ / _____

The California real property being conveyed is, or will be, exchanged for property of like kind (within the meaning of IRC Section 1031), but only to the extent of the amount of gain not required to be recognized for California income tax purposes under IRC Section 1031.

The California real property has been compulsorily or involuntarily converted (within the meaning of IRC Section 1033) and the seller intends to acquire property similar or related in service or use so as to be eligible for non-recognition or gain for California income tax purposes under IRC Section 1033.

The California real property transaction will result in a loss or net gain not required to be recognized for California income tax purposes.

For more information, Buyers and Sellers should refer to Form 593-C and 593-E Booklet, Real Estate Withholding Certificate and Computation of Estimated Gain or Loss from the California Franchise Tax Board. In addition, withholding is also required for real estate foreclosures and short sale transactions unless any exemptions certified on Form 593-C apply or the sale qualifies under the automatic exclusions. For more information on real estate foreclosures and short sale transactions, refer to Publication 1016, Real Estate Withholding Guidelines by the California Franchise Tax Board. Further questions regarding withholding may be answered at http://www.ftb.ca.gov/individuals/wsc/California_Real_Estate.shtml or by seeking independent professional tax advice. The parties acknowledge Escrow Holder is under no duty to act regarding withholding without further mutual written instructions of buyer and seller in form satisfactory to escrow. The parties agree that Escrow Holder is not required to serve as a qualified substitute, but Escrow Holder is held harmless and indemnified for complying with any Tax Withholding Instruction or any third-party claims that may arise. Seller and Buyer agree to comply with Section 18662 of California Revenue and Taxation Code as (as amended), and Seller shall cause to be deposited into escrow such forms that maybe necessary for the parties hereto to comply with said tax code, as expanded

12. **Tax Reporting/1099:** Under the Tax Reform Act, Internal Revenue Service Code Section 6045(e), Escrow Holder will report the gross proceeds of an ownership interest in reportable real estate to the Internal Revenue Service ("IRS"). The Seller/Transferor required by law to furnish a correct Taxpayer Identification Number ("TIN") or Social Security Number to Escrow Holder. Each Seller/Transferor must provide a permanent address to which the Escrow Holder can mail the IRS Form 1099-S following the close of escrow. If there is more than one Seller/Transferor, any allocation of the gross proceeds from the transaction must be received by Escrow Holder prior to closing. If Escrow Holder fails to receive a complete allocation or receives no allocation from Seller/Transferor, Escrow Holder must report the entire unallocated gross proceeds to that Seller/Transferor. If conflicting allocations are received, Escrow Holder must Report the entire gross proceeds on each Seller/Transferor's 1099-S Form to the IRS. Sellers/Transferors' who are married or domestic partners on the closing date and who hold title to the property as tenants in common, joint tenancy or community property are treated for reporting as a single Seller/Transferor.

13. **Allocation of Costs:** Escrow Holder is instructed to debit Parties under Purchase Agreement and pay relevant bills presented before the Close of Escrow. Escrow Holder has no duty or liability to pay bills received after close of escrow. All Parties agree to pay escrow fees and charges, including messenger fees, overnight delivery charges, recording fees, charges for evidence of title, HOA fees, and notary fees, if applicable at cancellation or close of escrow. Escrow Holder is authorized to use funds on deposit to pay for any credit report, appraisal, City Report, lender or association statement, demand, transfer fees or documents that may be required pre-paid in advance of closing. Funds released prior to the close of escrow as pre-paid fees are non-refundable regardless of consummating this escrow. If not provided for in the Purchase Agreement, the CLTA Owner's Title Insurance premium will be charged to Seller and the ALTA Lender's Policy, if applicable, will be charged to Buyer at close of escrow, together with any other charges Title Company deems necessary to close escrow. All other closing costs are charged under the Purchase Agreement. Unless otherwise instructed, Escrow Holder will debit the Seller for any transfer tax that may be imposed by any City or County in which the property of this escrow is located and may pay any bonds, assessments, taxes, or any liens of record, including any prepayment penalties to transfer title to Buyer as called for in this escrow.

14. **Authorization to Send Documentation:** Unless otherwise instructed, the Buyer(s) and Seller(s) authorizes Escrow Holder to release estimated closing statements, executed escrow instructions, amendments, "short-pay approvals" and final closing statement or consolidated closing statement to any New Lender, Loan Broker, "short-pay" lenders or loan servicer necessary to close the escrow. This authorization shall pertain to the documentation set forth above only. Escrow Holder may furnish a copy of these instructions, amendments, and notice of cancellation, title reports, estimated and closing statements to any real estate broker, lender or title company, referenced in this escrow, prior to close of escrow.

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Seller's Initials: _____ Buyer's Initials: _____ / _____

15. **Personal Property:** Any Personal Property the subject of this escrow is exclusively between the parties and of no concern to Escrow Holder. Escrow Holder shall conduct no lien or title search of personal property sold or transferred through this escrow; and all Personal property shall have "no value" in this escrow unless otherwise assigned in a separate written instruction.

16. **Beneficiary Statement/Payoff Demands:** Parties acknowledge that Escrow Holder relies on the Seller's accurate identification of all loans, liens, and encumbrances on the property in ordering payoff demands. Escrow Holder is not liable or responsible for the contents or accuracy of any beneficiary demands, beneficiary statements, or payoff demands delivered to it by the existing lien holders or homeowner associations. Escrow Holder will forward demands or statements received to Sub-Escrow Holder for Sub-Escrow Holder to reconfirm demands before use in making the payment of any taxes, beneficiary, or payoff demands; and for obtaining a full or partial reconveyance of any liens or encumbrances paid through the sub-escrow to place the title of the property and priority of liens in the manner provided for in any lender instructions or escrow instructions. Escrow Holder is not liable or responsible for any prepayment or penalty charged in any beneficiary statement and/or demand, and may pay through escrow any sums necessary to convey title to the property as called for in the escrow instructions. Escrow Holder is not required to submit any such beneficiary statements and/or payoff demands to the parties for approval before the close of escrow unless expressly instructed to do so in writing. Should the parties desire to pre-approve any such beneficiary statement and/or payoff demand, the parties requesting the same shall deliver separate and specific written escrow instructions to Escrow Holder. Seller knows that interest on existing loans are paid in arrears, and Seller's account will be charged interest on the payoffs of existing loans until the lender receives the payoff funds from the Title Company after the close of escrow.

17. **New Loans:**

A. After receipt of Buyer's closing funds, Escrow Holder may request Buyer's new lender (if any) to fund the new loan proceeds to it or Title Company/Sub-Escrow Holder one business day prior to recordation and the close of escrow. Buyer and Lender know that interest on any new loan funded in this escrow will accrue from Lender's funding and there may be a delay between the funding date and recording date. Escrow Holder shall have no liability for the payment of interest on any loan, for the early funding by the Lender, for any delay caused by the Lender's failure to timely fund, for lender's demand for return of funds, or based on the date of distribution of any funds through Escrow. Lender has knowledge that the "Close of Escrow" is understood to mean the date the grant deed, or other evidence of transfer of title, is recorded; and not the date the loan funds ("closes"). Escrow Holder may return any funds received from a new lender upon demand prior to the close of escrow without liability.

B. Escrow Holder is not to be responsible or concerned with the terms of any new loan or the content of any loan documents with this escrow. Escrow Holder's duties are limited to receiving loan documents into the escrow file, transmitting the loan documents for execution before any Notary, and returning the executed loan documents to Lender for review and approval. The parties and lender acknowledge Escrow Holder does not interpret or explain loan documents, nor is Escrow Holder involved or concerned with the loan application, qualifications, underwriting, disclosures, approval and processing of any loan or the contents, terms, or effects of documents prepared by the lender. Lenders are responsible for the sufficiency and correctness of its own loan documents and qualifications of the Borrower in advance of funding.

C. The parties understand Escrow Holder is only a settlement agent, not a "creditor" or the agent of a "creditor" regarding new loans. Therefore, Escrow Holder is not assuming any duty or responsibility of disclosure for the "creditor" under TILA, RESPA, HOEPA or TRID rules (15 U.S.C. 1635(a), 15 U.S.C. 1638(a), 15 U.S.C. 1639 et. seq. or as amended by the Dodd-Frank Act) regarding any loans. The Lender/creditor regardless of any assistance received in completing forms considered disclosures to the consumer, shall remain liable and responsible for ensuring all state and federal laws are satisfied. Questions regarding the loan terms, documents or disclosures must be directed to the loan broker or Lender/creditor of the party. If Escrow Holder is assisting or completing any Closing Documents, including but not limited to a Seller's Closing Disclosure ("CD") or HUD-1, found to be a disclosure in this transaction, it is doing so in reliance on the information provided to Escrow Holder by the loan brokers, venders, or lenders and are not independently verified by Escrow Holder. Escrow Holder shall not be liable or responsible for any inaccuracies regarding the disclosures, in a borrower's CD, a Loan Estimate ("LE"), a Good Faith Estimate ("GFE") Closing Statement, a comparison of costs, or the actual loan terms. Buyer(s), Borrower(s), Broker(s), and Lender/creditors(s) accept full responsibility for verification and accuracy of the figures of the new loan with the TRID-Closing Document, the LE, a GFE comparison of costs, disclosures, and compliance with Dodd-Frank Act and CFPB/TRID rules.

D. Escrow Holder may comply with any portion of any Lenders Instructions pertaining to usual escrow functions under California law not inconsistent with these Escrow Instructions. If any conflict arises between the terms of any Lender's Instructions and these Escrow Instructions, these Escrow Instructions shall govern the duties and obligations of Escrow

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Seller's Initials: _____ Buyer's Initials: _____ / _____

Holder. NOTWITHSTANDING ANY LENDER'S OR LIEN HOLDER'S INSTRUCTIONS SUBMITTED TO ESCROW HOLDER, WHICH MUST BE SIGNED BY THE ESCROW HOLDER:

- 1) No fiduciary relationship shall arise between Escrow Holder and any lender, lien holder, creditor or third-party;
- 2) Escrow Holder has no duty or obligation to indemnify or reimburse any buyer(s)/ borrower(s)/ broker(s) or lender(s) any sum or to purchase any loan, note, deed or debt relating to this escrow transaction;
- 3) Escrow Holder is not required or responsible for making disclosures, warranting any facts, or performing any due diligence for the lenders on borrowers, the source of funds, the property, or lien priority of the security for the loan;
- 4) Escrow Holder is not warranting or insuring for the lenders any secondary transaction for sale, purchase, guarantee by FHA, VA, PMI or that a loan is purchased by investors;
- 5) Escrow Holder cannot be required to perform title searches or Sub-Escrow Holder functions, or perform lender's non-delegable duties regarding consumer notice, statutory disclosures, or underwriting responsibilities under California or Federal law.
- 6) Escrow Holder in no way warranties or guaranties the status of title or lien priority of any document to any lender, rather, Escrow Holder's responsibility is limited to obtaining a commitment that a Title Company is prepared to issue a policy of title insurance in the manner called for by any Lenders Instructions. A Lender should contact the Title Company should it desire an abstract of title under California Insurance Code §12340.10 as part of its due diligence and share information with Title Company to receive the lien priority and insurance policy desired.
- 7) Escrow Holder is authorized and instructed to forward Lenders Instructions regarding title policies, priority of any lien or deed of trust to Title Company for its duty of recording documents, payment of encumbrances, and receipt of any reconveyance as insurer, recorder, abstractor of title and Sub-Escrow in assuring title of ownership and lien priority of documents as called for in Lender's Instructions. E. Escrow Holder shall not be responsible or concerned with any question of usury in any loan or encumbrance, whether new or of record, which may arise during the processing of this escrow.

18. AUTHORIZATION TO ACCEPT ELECTRONIC SIGNATURES AND DOCUMENTS:

In accordance with California's Uniform Electronic Transactions Act (the "Act"), the Parties authorize Escrow Holder to accept electronic and/or digital signatures and records, transmitted via facsimile or other electronic means (collectively "electronic signatures") into this escrow as originals. The Parties agree that this escrow transaction may be conducted electronically to the fullest extent possible under the Act and recording laws. The Parties shall transmit original, wet signatures on (1) all documents to be recorded, (2) all documents excluded from being enforceable under the Act, and (3) all documents required to be in original form by any regulatory agency. The Parties shall verify any electronic signatures upon request of Escrow Holder.

19. Property Insurance:

A. It is Buyer's obligation to ensure that any property hazard insurance policy regarding the real or personal property in this escrow fully complies with the Lender's requirements regarding amount of coverage, terms, payee(s), insured, etc., and that the evidence of hazard insurance is timely deposited with Escrow Holder. Escrow Holder is hereby instructed to pay from Buyer's account the first year's premium at the close of escrow to Buyer's chosen insurance holder and may forward a copy of any evidence of an insurance policy to lender, if requested. Escrow Holder shall have no duty or responsibility regarding hazard insurance, except to forward the first year's premium, or evidence of payment, and the evidence of buyer obtaining insurance to the lender. It is Buyer's or lender's exclusive duty to verify the policy of insurance provides adequate coverage needed and must ensure the policy or policies of insurance are issued and remains in effect after the close of escrow.

B. HOA Insurance: Escrow Holder is authorized and instructed to debit funds deposited by Buyer for payment of any fee assessed by the Master Insurance Holder of the HOA for issuance of their Certificate. Buyer has satisfied himself of the existence of the master insurance coverage of the HOA and is advised to fully investigate the extent and scope of its coverage and obtain any additional or supplemental coverage outside of escrow. Escrow Holder is not to be concerned nor held liable or responsible in connection therewith.

C. ALL CASH: In the event of an all-cash transaction, Buyer has the option of paying any hazard insurance premium through escrow, by designating in writing the insurer to be used and depositing funds into escrow for the first-year premium. Buyer is exclusively responsible to confirm issuance of any policy, with the desired coverage, at the close of escrow.

20. No Disclosures or Warranties:

A. The parties acknowledge that depending on the type (Commercial or Residential) and location (City) of real property involved in this escrow, there may be disclosure(s) and civil or municipal ordinance requirement(s) that would affect

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Seller's Initials: _____ Buyer's Initials: _____ / _____

transferring the real property. Escrow Holder urges both parties to seek appropriate counsel from an attorney or licensed real estate broker to ascertain what disclosures, certificates, reports and/or civil or municipal ordinances, need to be complied with outside of escrow prior to the close of escrow. The parties' signature upon these instructions shall be deemed evidence to the Escrow Holder that the parties have obtained independent counsel and know of any disclosures, certificates, reports, civil or municipal ordinance requirements and will comply with same outside of this escrow. Unless otherwise instructed in writing to the contrary within the body of these escrow instructions, Escrow Holder has no responsibility or liability for any such disclosures, notices or reports, regarding civil or municipal ordinances.

B. Escrow Holder is not responsible or liable for the validity, regularity or sufficiency of municipal residential property reports, parking disclosures, or retro-fit standards to be complied with upon transferring real property. Escrow Holder may forward a request or application for a Residential Property Report or Certificate of Compliance received to the appropriate governmental agency. Escrow Holder charges Seller with any fee to file such document, unless otherwise instructed. Escrow Holder is not responsible or liable for the content or timeliness of any request, application, or response of any governmental agency. Any property reports or certificates deposited into escrow are a courtesy copy Escrow Holder is not required to forward to any party.

C. Escrow Holder is not responsible or concerned with giving any disclosures except as expressly required by Federal or State law to be given by an escrow holder. Escrow Holder has no responsibility or concern with the lenders loan disclosures, effect of zoning ordinances, land division regulations, homeowner associations or building occupancy restrictions or certificates, covenants, conditions, or restrictions (CC&Rs) that may pertain to or affect the land or improvements of the property of this escrow. The parties must satisfy themselves outside of escrow that the transaction covered by this escrow is not in violation of the Subdivision Map Act or any other law regulating land sub-division, CC&R's or homeowners association rules; and Escrow Holder has no responsibility or liability for any disclosure or use regulation pertain to or affecting the land or improvements that are the subject of this escrow. The Escrow holder shall have no duty and it's not liable to any party for disclosure or non-disclosure of any facts within Escrow Holder's knowledge relating to the subject property or parties unless they effect Escrow Holder's compliance with these escrow instructions. The parties' signatures on this instruction evidences their acceptance of their duty to exclusively and independently investigate all use limitations pertaining to or affecting the land or improvements the subject of this escrow.

21. **Property Condition:** Escrow Holder makes no physical examination or inspection of any real or personal property described in these instructions or in any instrument or document deposited. Escrow Holder accepts no agency or duty, and none may be implied in any manner under California Civil Code §1102.11, any other statute, ordinance, authority, or written agreement for making or giving any disclosures under transferring Residential Property laws or local ordinances. The parties expressly acknowledge that Escrow Holder has no duty or liability for the physical condition, use, or habitability of any property the subject of this escrow.

22. **Disbursements:** Disbursements shall be made by Escrow Holder either by check or wire transfer. Checks not presented for payment within six months are subject to service charges. All documents and funds due to respective parties shall be made by United States mail to parties' addresses provided to Escrow Holder, unless otherwise instructed. Escrow Holder has no control or liability regarding a bank's timely processing or receipt of any disbursement made by check or wire transfer under a party's instruction. It shall be the party's duty to provide correct and accurate wire instructions to Escrow Holder. Escrow Holder is not responsible or liable for any loss or damages caused by delays, rejections, or mis-delivery of wire transfers due any act by a third-party, any incorrect routing or account numbers, account payees and or account beneficiaries, on any account or institutions into which Escrow Holder is directed to wire funds.

23. **Assignment of Proceeds:** If the parties to this escrow unilaterally assign or order the proceeds of this escrow to be paid to other than the original parties to this escrow, such assignment or order is subordinated to the expenses of this escrow, liens of record on the property, and payments directed to be made by original parties together. If the result of such assignment or order would be to leave the escrow without sufficient funds to close, then Escrow Holder is directed to close and pay such assignments or orders out of the net proceeds due in the order in which such assignment or orders are received. If any assignment or transfer of interest is by operation of law, with or without the approval or consent of any or all of the parties hereto, Escrow Holder shall retain the right to deduct any and all escrow costs, fees, and expenses provided for or under your current fee schedule from said assigned or transferred funds, property or rights, prior to payment. Escrow Holder shall have the right to reject any assignment or order not in satisfactory form or that creates undue risk to Escrow Holder.

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Seller's Initials: _____ Buyer's Initials: _____ / _____

24. **Dishonored Checks:** If any check submitted to Escrow is dishonored upon presentment for payment, Escrow Holder may notify all parties, their respective holders or any other person or entity Escrow Holder deems necessary to notify of such nonpayment. The party submitting the dishonored check shall reimburse Escrow Holder for any costs or expenses in connection therewith. THE SELLER'S EXCLUSIVE LEGAL OR EQUITABLE REMEDY FOR ANY INJURY FROM THE DISHONORING OF ANY CHECK OR FUNDS FROM BUYER SHALL LIE ONLY AGAINST BUYER AND NOT ESCROW HOLDER.

25. **Reimbursement of Funds:** If Escrow Holder disburses more funds to or for the benefit of any party than they are entitled to receive, or the escrow has a shortage to or for the benefit of any party, that benefitting party agrees to repay Escrow Holder the overpayment or shortage within five days of its demand, after which interest shall accrue at the rate of ten percent (10%) per annum. If any failure to pay occurs fees, costs or expenses due on Escrow Holder's demand the parties agree to pay a reasonable fee for any attorney services which may be required to collect such fees, costs, or expenses, besides any other fees and costs as the court may otherwise determine.

26. **Document Retention/Electronic Records:** The parties acknowledge, consent and expressly authorize the Escrow Holder to convert, store, or otherwise maintain any original documents (including executed purchase agreements) or copies submitted or provided to Escrow Holder in an electronic format or medium for all purposes. Upon Escrow Holder's transfer of any document into an electronic format, it is expressly authorized to destroy the original paper documents submitted to Escrow Holder, without liability. The Parties agree that electronic record or data maintained by Escrow Holder will be admissible in any legal, administrative or other proceedings as conclusive evidence of the contents of those documents in the same manner as original paper documents, and the Parties waive any right to object to the introduction of any electronic data or records into evidence. The parties to these Escrow Instructions authorize Escrow Holder to destroy these instructions and all other instructions, documents and electronic records of this escrow after five (5) years from the close of escrow, cancellation, or date of the last activity without liability and without further notice to the parties.

27. **Choice of Law:** These instructions must be construed and interpreted according to California Law and are performed in Orange County, California.

28. **Limitations of Liability:**

A. UNDER NO CIRCUMSTANCES OTHER THAN FRAUD OR WILLFUL MISCONDUCT BY ESCROW HOLDER SHALL ESCROW HOLDER HAVE ANY RESPONSIBILITY FOR DAMAGES IN EXCESS OF \$50,000.00 UPON A FINDING OF LIABILITY AGAINST ESCROW HOLDER. THIS SECTION IS OF KEY IMPORTANCE TO ESCROW HOLDER, AND ESCROW HOLDER WOULD NOT ENTER INTO THIS AGREEMENT IN THE ABSENCE OF THIS SECTION. THIS SECTION SHALL SURVIVE TERMINATION OF THIS AGREEMENT.

B. NO ACTION SHALL LIE AGAINST ESCROW HOLDER FOR ANY CLAIM, LOSS, LIABILITY OR ALLEGED CAUSE OF ACTION OF ANY KIND OR NATURE WHATSOEVER, HOWEVER CAUSED OR OCCURRED, UNDER THIS ESCROW OR IN CONNECTION WITH THE HANDLING OR PROCESSING OF THIS ESCROW, UNLESS BROUGHT WITHIN TWELVE (12) MONTHS AFTER THE CLOSE OF ESCROW OR ANY CANCELLATION OR TERMINATION OF ESCROW FOR ANY REASON WHATSOEVER.

29. **No Legal, Financial or Tax Advice:** THE PARTIES ACKNOWLEDGE AND UNDERSTAND THAT ESCROW HOLDER IS NOT AUTHORIZED TO PRACTICE LAW NOR DOES IT GIVE FINANCIAL ADVICE. THE PARTIES ARE ADVISED TO SEEK LEGAL AND FINANCIAL COUNSEL AND ADVICE CONCERNING THE EFFECT OR CONSEQUENCES OF THE PURCHASE AGREEMENT, THESE ESCROW INSTRUCTIONS AND GENERAL PROVISIONS, ANY LOAN DOCUMENTS, OR OTHER FINANCIAL/TAX DOCUMENTS. THE PARTIES ACKNOWLEDGE THAT NO REPRESENTATIONS ARE MADE BY ESCROW HOLDER AND NO RELIANCE CAN BE PLACED ON THE LEGAL SUFFICIENCY, LEGAL CONSEQUENCES, FINANCIAL EFFECTS OR TAX CONSEQUENCES OF ANYTHING WITHIN THIS ESCROW TRANSACTION BASED ON REPRESENTATIONS OF THE ESCROW HOLDER.

30. **Legal Fees:** IN THE EVENT ANY PARTY TO THIS ESCROW, INCLUDING YOU AS ESCROW HOLDER, INSTITUTES OR DEFENDS ANY ARBITRATION OR LITIGATION AT LAW, INCLUDING CONTRACT OR TORT OR ACTIONS IN EQUITY ARISING OUT OF THIS ESCROW, THE PREVAILING PARTY SHALL, IN ADDITION TO SUCH OTHER RELIEF AS MAY BE AWARDED, BE ENTITLED TO RECOVER REASONABLE ATTORNEYS' FEES, COSTS, CHARGES AND EXPENSES OF SUCH LITIGATION.

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Seller's Initials: _____ Buyer's Initials: _____ / _____

31. **Witness Fees:** If any officer, employee, or representative of Escrow Holder must respond to any subpoena or other order to appear in an action or proceeding in which Escrow Holder's breach or fault is not in issue, the party requiring such appearance agrees to indemnify and hold Escrow Holder harmless against all costs, expenses and reasonable attorney's fees expended or incurred by it for such appearance. The party requiring such appearance shall pay to Escrow Holder and each officer, employee(s), or representative(s), besides the amounts from time to time provided for by law, the sum of \$400.00 as an additional witness fee for each day or part that an officer, employee or representative of Escrow Holder must attend. As a condition precedent to any obligation to appear under such subpoena or order, the party requesting such appearance must concurrently with the service of the subpoena or order pay the additional witness fee agreed to for each day's actual attendance, even if no testimony is given.

32. **Fees and Expenses:** Fees and charges agreed upon for your services shall be compensation for ordinary services as contemplated by these instructions. If the conditions of this escrow are not promptly fulfilled by the parties or if Escrow Holder renders any service not provided in these instructions, or if the parties request a substantial modification of its terms, or any controversy arises, Escrow Holder is made a party, or intervenes in, or must participate in any mediation, arbitration or litigation, including an interpleader action pertaining to this escrow or its subject matter, before, during, or after the close of escrow, Escrow Holder shall be reasonably compensated for such extraordinary services and reimbursed for all costs and expenses incurred by it, including any reasonable legal fees or costs incurred, whether litigation is filed or not, and costs and expenses occasioned by the default, delay, controversy, mediation, arbitration or litigation. If sums remaining on deposit in escrow become subject to the state unclaimed property law and require escheatment to that particular state, the Parties authorize Escrow Holder to debit its authorized costs to escheat from said funds.

33. **Conflicting Demands/Instructions & Interpleader Actions:** If conflicting demands are made upon Escrow Holder or notice is given of any controversy or legal action between the parties or third person(s) for this escrow, Escrow Holder shall not be required to determine or resolve conflicting demands or claims or take any action, but has the absolute right to stop and withhold all further proceedings to perform this escrow, without liability, until any such conflicting demands or claims have been determined, resolved, or eliminated by mutual written agreement of the parties, a valid amendment or supplement to the escrow instructions, or a final order or judgment of a court of competent jurisdiction in form satisfactory to Escrow Holder is deposited into escrow. Escrow may also, at its sole discretion, sue in interpleader or declaratory relief action, and are instructed and authorized to deposit any documents or funds which are the subject of conflicting demands or claims with the court under any such action, less Escrow Holder's escrow fees, costs, and attorney's fees incurred. The Parties acknowledge and understand that any irrevocable escrow instruction received and accepted by Escrow Holder are not subject to conflicting demands. Irrevocable escrow instructions can be amended or revoked only with the written consent of the Parties to the irrevocable escrow instructions. Escrow Holder shall have no liability for complying with its irrevocable escrow instructions of its Parties.

34. **Resignation:** At any time prior to close of escrow, Escrow Holder, for any reason and without liability from the principals, may give written notice to the parties and resign as Escrow Holder. Escrow Holder shall be entitled to be reasonably compensated for the escrow service performed and reimbursed all costs and expenses incurred up to resignation. The balance of any funds, property or documents shall be returned to the parties who deposited same or forwarded to a new escrow holder as mutually designated in writing by the parties.

35. **General Authorizations:**

A. Escrow Holder is authorized in its sole discretion to rely and act upon facsimile instructions, electronic instructions (e-mail), copies of purported instructions, including, but not limited to, escrow instructions, amendments or modifications, demands, lender instructions, pay-off instructions and bills from the Parties or third parties, as though they are original instructions signed by the parties or third parties. The Escrow Holder is entitled to follow and to rely on such instructions without any further verification or inquiry. However, if Escrow Holder elects, in its sole discretion, to authenticate or verify any instruments received, it may refuse to follow such instructions until they have been authenticated or verified in a manner satisfactory to Escrow Holder. **The Parties shall release and indemnify the Escrow Holder from any loss, cost, damage or expense, the Parties or any third party may directly or indirectly suffer or incur in the event the Escrow Holder elects to authenticate or verify any instructions.** Parties acknowledge that if they chose to use an electronic device that is not secure, including, without limitation, facsimile or unencrypted electronic mail, to communicate to the Escrow Holder that (i) security, privacy and confidentiality cannot be ensured, (ii) such communication is not reliable and may not be received by the Escrow Holder in a timely manner or at all, and (iii) such communication could be subject to interception, loss or alteration. **The Parties hereby release and indemnify the Escrow Holder from and against any loss, cost, damage or expense Escrow Holder, a Party,**

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Seller's Initials: _____ Buyer's Initials: _____ / _____

or any other party may directly or indirectly suffer or incur by Escrow Holder relying on any such fax and electronic communication.

B. Escrow Holder may use any standardized or preprinted form to comply with these instructions. Escrow Holder may use its own forms or any usual forms of any Title Company and may insert dates and terms on the instruments, if incomplete when executed by a party.

36. Miscellaneous Conditions:

A. This escrow will be processed in the English language. Should any Principal elect to use a language translator to assist them in understanding the escrow process, or any documentation part of this escrow, that language translator will be selected and provided by the Principal needing such assistance. The Escrow Holder will provide no language translation services. If any language translation is provided by Escrow Holder it is rudimentary, solely as a courtesy and may not be relied upon. Escrow Holder will not be liable or responsible for the correctness of any language translator's interpretation of the escrow process or of any other documentation that is a part of this Escrow. Any signature on a document shall be relied upon by Escrow Holder that the signor fully understood and accepted the terms in the documents.

B. These Additional Escrow Instructions and General Provisions may be executed in counterparts, each of which shall constitute one and the same document.

C. If any instruction or term in these Escrow Instructions is held invalid by judicial proceeding, the remaining shall continue to be operative and enforceable.

37. Cancellation: The parties, jointly and severally, agree that if escrow cancels, is terminated or otherwise not closed, the parties shall pay Escrow Holder any costs and expenses it incurred or has become obligated for in processing this transaction including, but not limited to, courier fees, filing fees, attorneys' fees and costs, third-party vender fees for services performed for this escrow; and an escrow cancellation fee for services rendered in an amount of \$500.00 or up to the full escrow fee depending on the status of the escrow at "cancellation." The parties agree that such costs, expenses and fees shall be paid from funds already on deposit or deposited in escrow before any cancellation or other termination of this escrow is effective. The parties agree that said charges for expenses, costs and fees may be apportioned between Buyer and Seller in a manner which, in Escrow Holder's sole discretion, it considers equitable and Escrow Holder's decision will bind and conclusive upon the parties. Except as provided in the Purchase Agreement, upon receipt of mutual cancellation instructions, a final order or judgment of a court of competent jurisdiction with accompanying writs of execution, levies or garnishments in form satisfactory to Escrow Holder, Escrow Holder is instructed to disburse the escrow funds and instruments under such cancellation instruction, order, judgment or accompanying writ; and the escrow without further notice shall be terminated and canceled.

38. No Activity Cancellation: The principals to the transaction agree that if no additional instructions are received from one or both of the principals in this transaction within 120 days from the date escrow is scheduled to close, or any written extension, the escrow holder may consider the escrow canceled and may take a cancellation fee for \$500.00 or a reasonable fee based on escrow holders determination of services performed. Any remaining deposits, documents or other items held by escrow holder may be disbursed to the depositors or parties specified in the instructions. Nothing restricts the ability of the escrow holder to file an interpleader action if a dispute occurs over the proper distribution of funds deposited with escrow.

39. I/We agree to pay FUNDS REQUIRED TO CLOSE ESCROW UPON DEMAND.

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Seller's Initials: _____ Buyer's Initials: _____ / _____

THE UNDERSIGNED HEREBY ACKNOWLEDGE THEY HAVE RECEIVED AND READ THESE PAGES OF ADDITIONAL ESCROW INSTRUCTIONS AND GENERAL PROVISIONS AND APPROVE, ACCEPT AND AGREE TO BE BOUND HEREBY.

END OF INSTRUCTIONS

IN WITNESS WHEREOF, the undersigned have executed this document on the date(s) set forth below.

SELLERS:

The Michael Cheringal Separate Property Trust, dated
December 18, 2024

By: _____
Michael Cheringal, Trustee

BUYERS:

Nilanthi Melony Mahaarachchi

Senaka Mahaarachchi

Next Door Escrow, Inc.

PRIVACY POLICY

Attorneys, like other professionals who advise on personal financial matters or who provide real estate settlement services, are now required by a new Federal law to inform their clients (customers) of their policies regarding privacy of client information. Attorneys have been and continue to be bound by professional standards of conduct that are even more stringent than those required by this new law. Therefore, we have always protected your right to privacy.

Types of Nonpublic Personal Information We Collect

We collect nonpublic personal information about you from the following sources:

- Information we receive from you, such as your personal financial information, your name, address, telephone number, or social security;
- Information about your transactions with us, or others. We receive this information from your lender, accountant, attorney, real estate broker, etc.;
- Information we receive about you that is obtained by us with your authorization; and
- Information from public records.

Parties to Whom We Disclose Information

For current and former clients, we do not disclose any nonpublic personal information obtained in the course of our practice to people outside our firm except as agreed to by you or as required or permitted by law. We restrict access to nonpublic personal information about you to people in our firm who need to know that information to provide products or services to you or requested by you or your Lender. In all such situations, we stress the confidential nature of information being shared.

Protecting the Confidentiality and Security of Current and Former Clients' Information

We retain records relating to professional services that we provide so that we are better able to assist you with your professional needs and, in some cases, to comply with professional guidelines. In order to guard your nonpublic personal information, we maintain physical, electronic and procedural safeguards that comply with appropriate federal and state regulations and with our professional standards.

BORROWERS:

Nilanthi Melony Mahaarachchi

Date:

Senaka Mahaarachchi

Date:

SELLER:

The Michael Cheringal Separate Property
Trust, and any amendments thereto dated
December 18, 2024

Date:

By: _____
Michael Cheringal, Trustee